

**B2B / INFORMATIONAL ENGLISH TRANSLATION - DUTCH TEXT CONTROLS**

General terms and conditions for business clients (B2B)

For quotations, assignments and agreements between AZ Grand Solutions vof (hereinafter: AZGS) and clients acting in the course of a profession or business.

Version 1.1 · 3 September 2026

Informational translation, scope and status: the Dutch text is the legally binding version; this English translation is provided for information only. These terms apply exclusively to business agreements (B2B). Clients acting as consumers are subject to the [general terms and conditions for consumers \(B2C\)](#). Project-specific provisions in a quotation or agreement accepted by both parties prevail over these terms. This is a draft for external legal review and has not yet been legally approved for contractual use.

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Article 1 - Definitions

In these general terms and conditions:

- a. AZGS:** the general partnership under Dutch law AZ Grand Solutions vof, trading under the registered trade name A-Z Grand Solutions and presenting itself as AZ Grand Solutions or AZGS.
- b. Client:** any natural person or legal entity acting in the course of a profession or business that enters into or negotiates an Agreement with AZGS.
- c. Agreement:** any agreement between AZGS and the Client for contracting work, services, supply, or a combination of these, including the accepted quotation, order confirmation and agreed written variations.
- d. Work:** all work, supplies and project-related services specifically agreed in the Agreement. The installation projects AZGS offers to business clients are limited to (i) sanitary installations and pipework, (ii) heating installations, including underfloor heating as part of that category, and (iii) ventilation installations. A separate technical building-maintenance assignment forms part of the Work only insofar as the maintenance activities are expressly and specifically described in the Agreement.
- e. Written:** by letter, email or another electronic means whose content can be stored and consulted afterwards.
- f. Business Day:** Monday to Friday, excluding generally recognised public holidays in the Netherlands.

Article 2 - Identity of AZGS

Legal name	AZ Grand Solutions vof
Trade name	A-Z Grand Solutions
KvK number	42064891
Establishment number	000053925335
Address	Alpenstraat 12, 3446 DN Woerden, the Netherlands
Email	info@azgs.nl
Quotation requests	aanvragen@azgs.nl
Telephone	+31 6 13636925

Article 3 - Application and order of priority

1. These terms apply to all business offers, quotations, agreements, repeat assignments and other legal relationships under which AZGS performs work or supplies goods. They do not apply to consumer agreements.
2. The Client receives these terms before or upon conclusion of the Agreement in a form that can be stored. By accepting the quotation or assignment, the Client also accepts these terms.
3. Deviations apply only if accepted in Writing by both parties. In the event of conflict, the following order applies: (a) the project-specific agreement or order confirmation accepted in Writing by both parties; (b) AZGS's accepted quotation; (c) these terms.
4. The Client's general purchasing or other terms are expressly rejected. Specifications, main contracts, UAV, UAV-GC or other industry conditions bind AZGS only insofar as AZGS expressly accepted them in Writing before conclusion of the Agreement.
5. If a provision is void or voidable, all remaining provisions continue in effect. The parties shall replace the invalid provision with a valid one that reflects its purpose as closely as possible.

Article 4 - Quotations and formation of the Agreement

1. Quotations are non-binding and remain valid for fourteen days unless stated otherwise. Obvious writing, calculation or measurement errors do not bind AZGS.
2. An Agreement is formed when the Client accepts the quotation unamended in Writing, both parties sign the Agreement, or AZGS starts performance at the Client's request.
3. An acceptance that differs from the quotation is a new proposal and binds AZGS only after AZGS accepts it in Writing.

4. Oral agreements, instructions or commitments bind AZGS only after Written confirmation or actual performance by AZGS.
5. The Client warrants that anyone who issues instructions, orders variations, signs work sheets or accepts completion on its behalf is authorised to do so. AZGS may rely on the authority of a project manager or contact person designated by the Client.
6. A telephone or online emergency notification does not in itself constitute an assignment. AZGS assesses a business emergency request only where it concerns a project or installation previously carried out by AZGS itself. Availability, acceptance and scheduling are confirmed separately. No response or arrival time is guaranteed unless agreed in Writing for the specific project.

Article 5 - Scope of the Work and contract documents

1. The content and scope of the Work are determined solely by the work description, drawings, quantities, exclusions and other contract documents accepted by AZGS.
2. Drawings, calculations, specifications, BIM models, schedules or instructions supplied by the Client are contractual inputs only insofar as they were supplied on time, are mutually consistent and are identified in the Agreement.
3. Design, advice, engineering, coordination or inspection services form part of the Work only if expressly agreed. AZGS remains subject to its statutory duty to warn of errors and unsuitability that it knew or reasonably should have known. For contracting work on a structure, a warning is issued in writing, unambiguously and in time, and states the possible consequences for proper performance.
4. Items not expressly included - such as structural provisions, permits, scaffolding, access equipment, demolition and reinstatement, painting, fire stopping, commissioning and inspections - are excluded. For business installation projects, work outside the three installation areas listed in Article 1 cannot be added to the project scope through a quotation. A separate technical building-maintenance assignment is limited to the maintenance scope specifically agreed. This exclusion does not affect any completion file and documentation required by law or agreed for the project.
5. If drawing dimensions differ from actual site conditions, dimensions established on site prevail. Consequences affecting the agreed scope are treated as a variation or additional work.

Article 6 - Client obligations

1. The Client provides on time all information, decisions, drawings, calculations, dimensions, safety instructions and other data reasonably required by AZGS. The Client warrants their accuracy, completeness and consistency.
2. Unless agreed otherwise in Writing, the Client arranges timely permits and approvals, a safe and accessible workplace, unobstructed access and deliveries, sufficient storage, suitable scaffolding and facilities, and electricity, water, lighting and sanitary facilities at no charge.
3. Before the start, the Client discloses all known or reasonably discoverable risks, including asbestos, contamination, hazardous materials, concealed pipes and cables, structural restrictions, fire-safety zones and business operations that may affect performance.
4. The Client coordinates other parties and ensures preceding work is properly and timely completed. Damage, delay or additional cost caused by other parties, unsuitable substrates or missing facilities is borne by the Client unless AZGS is responsible.
5. The Client promptly reviews information submitted for approval and provides decisions without obstructing progress. Approval does not release AZGS from responsibility for its own performance; consequences of choices required by the Client remain with the Client insofar as AZGS issued an appropriate warning.
6. If the workplace is unsafe or required information or facilities are missing, AZGS may interrupt the Work until the situation is remedied. The resulting time and cost impact is treated as Client-caused delay.

Article 7 - Performance and engagement of third parties

1. AZGS performs the Work to the best of its knowledge and ability, in accordance with good workmanship, the Agreement and statutory requirements directly applicable to its Work at the time of performance.
2. AZGS determines its working methods and staffing within the agreed scope, schedule and coordination arrangements. It may engage employees, independent contractors, suppliers or subcontractors under its responsibility.
3. The Client issues instructions through the agreed contact person. AZGS is not required to follow instructions that fall outside the scope, are technically unsound or unsafe, or conflict with regulations.

4. AZGS may use functionally equivalent materials or products if a specified item is unavailable or not available in time, provided quality and intended use are not materially reduced. AZGS informs the Client in advance where the substitution is relevant.
5. The Client may inspect without unnecessarily obstructing progress. An inspection, approval or absence of either does not reduce either party's own responsibilities.

Article 8 - Planning, time limits and delay

1. Start, performance and completion dates are indicative unless the Agreement expressly designates a date as a strict deadline.
2. The schedule assumes timely access, information, decisions, materials and preceding work. Disruption caused by the Client, other contractors or circumstances outside AZGS's responsibility entitles AZGS to an extension and reimbursement of demonstrable waiting, idle-time, relocation and restart costs.
3. AZGS informs the Client as soon as reasonably possible of material delay and its expected consequences. The parties cooperate on a practical revision of schedule and sequence.
4. For a date that is not a strict deadline, AZGS is in default only after Written notice of default and expiry of a reasonable cure period.
5. Delay damages, contractual penalties or discounts apply only if expressly and project-specifically included in an Agreement accepted by AZGS.

Article 9 - Prices and changes in cost

1. All prices are in euros, excluding VAT and other government charges, unless stated otherwise in Writing.
2. A fixed price covers only the expressly described scope and assumptions. Estimated quantities, provisional sums and time-and-material work are charged by actual quantity, time, materials and agreed rates.
3. Costs caused by inaccurate or incomplete information, concealed conditions, changes in law or instructions, Client delay and other variations not attributable to AZGS are charged as additional work to the extent permitted by law.
4. If cost-increasing circumstances arise or become known after the Agreement and cannot be attributed to AZGS, the parties consult promptly. AZGS retains its statutory remedies in respect of cost-increasing circumstances.
5. Travel, parking, toll, accommodation, inspection and disposal costs are included only if stated in the quotation.

Article 10 - Variations, additional and omitted work

1. A change to scope, design, material, dimensions, phasing, sequence or schedule may affect the price and completion date.
2. AZGS identifies price and schedule effects before additional work where reasonably possible. Additional work need not be priced in advance and may be charged on a time-and-material basis if no fixed additional price is agreed.
3. Absence of a signed advance instruction does not prevent payment if the Client ordered the work or should have understood the need for a price increase. Where work is demonstrably urgent to prevent damage, danger or serious disruption, AZGS informs the Client in advance where reasonably possible and otherwise as soon as possible; payment is due only insofar as it follows from the law and the specific assignment.
4. A project manager or contact person designated by the Client is deemed authorised to order operational additional work unless AZGS was informed in advance in Writing of a specific limitation.
5. Omitted work is credited based on demonstrably saved direct costs, less commitments already made, preparation costs and reasonable effects on schedule and capacity.

Article 11 - Invoicing and payment

1. AZGS may invoice advances, instalments, progress payments and a final payment as stated in the Agreement. In the absence of a schedule, AZGS may invoice monthly for progress and supplied materials.
2. Invoices are payable within fourteen days of the invoice date without discount or deduction, unless another term is agreed in Writing and subject to the proportionate right of suspension in Article 12. Any statutory maximum payment period continues to apply.
3. The Client submits a reasoned invoice objection within seven Business Days of receipt. An objection does not suspend payment of the undisputed portion.

4. After expiry of the payment period, the Client is in default without further notice and owes Dutch statutory commercial interest.
5. All reasonable extrajudicial and judicial recovery costs are payable by the Client. Extrajudicial costs are at least 15% of the outstanding principal, subject to a minimum of €150, to the extent permitted by law.
6. Payments are allocated first to costs and interest and then to the oldest outstanding invoice, regardless of a different payment reference.

Article 12 - Security, suspension and set-off

1. Before or during performance, AZGS may require reasonable security or advance payment if there are reasonable grounds to doubt timely payment. AZGS may suspend its obligations until security is provided.
2. For late payment or another attributable breach by the Client, AZGS may suspend the Work after an appropriate Written warning where required. Resulting time and cost consequences are borne by the Client.
3. The Client may suspend payment only for the portion reasonably proportionate to a specific and substantiated breach.
4. The Client may not set off an AZGS claim against a counterclaim unless AZGS has acknowledged it in Writing or it has been finally established by a court.
5. AZGS claims become immediately payable upon the Client's bankruptcy, suspension of payments, dissolution or cessation, attachment of a material part of its assets, or another situation reasonably indicating that payment is at risk.

Article 13 - Completion, inspection and completion file

1. AZGS notifies the Client when the Work or an agreed section is ready for completion. The Client inspects within five Business Days or the project-specific agreed period.
2. The Work is deemed completed when the Client accepts it, puts it into use, fails to respond within the inspection period with specific defects, or unreasonably refuses to cooperate with completion.
3. Minor defects that do not prevent use are not grounds to refuse completion. They are recorded and remedied within a reasonable period.
4. Visible defects and outstanding items are recorded in a completion list. Risk in the Work transfers to the Client upon completion insofar as the law does not provide otherwise.
5. For contracting work on a structure, AZGS supplies the completion file under Section 7:757a of the Dutch Civil Code when notifying the Client that the Work is ready for completion, unless the parties have made a legally valid different arrangement. The file enables the Client to verify whether AZGS has fulfilled its obligations and contains the drawings, calculations and information concerning materials, installations, use and maintenance required by law. The project-specific content, form and digital structure should preferably be recorded in the Agreement in advance.

Article 14 - Defects, duty to complain and remedy

1. The Client carefully inspects the Work at completion. Visible defects are entered in the completion list; other defects are reported in Writing, with sufficient detail, as soon as possible and no later than ten Business Days after discovery.
2. Late notice results in loss or restriction of rights only insofar as it actually prejudices AZGS's ability to investigate or remedy. Statutory limitation and expiry periods remain in force.
3. The Client gives AZGS a reasonable opportunity to investigate and, if AZGS is responsible, remedy the defect within a reasonable period. The Client may not engage a third party and recover its costs without that opportunity, except in a demonstrable emergency.
4. AZGS is not responsible for defects or damage caused by normal wear, improper use or maintenance, third-party work, Client-prescribed or supplied items, unsuitable existing structures or installations, or failure to follow Written warnings. This exclusion does not apply insofar as AZGS failed to comply correctly with its statutory duty to warn or is otherwise responsible for the defect or damage.
5. For defects in a structure that were not discovered at completion, Section 7:758(4) of the Dutch Civil Code applies where relevant. Any provision departing from it to the detriment of a business Client applies only if expressly and project-specifically included in the Agreement itself; these general terms do not themselves contain such a departure.
6. The statutory provisions concerning concealed defects known and withheld by AZGS continue to apply in full.

Article 15 - Warranty

1. An additional warranty applies only if included in Writing in the quotation, Agreement or a warranty statement. Its term, scope, conditions and exclusions are governed by that document.
2. Manufacturer and supplier warranties are passed to the Client where transferable. AZGS has no greater obligation than the manufacturer or supplier fulfils towards AZGS, unless the defect also results from an attributable execution error by AZGS.
3. A warranty is excluded insofar as the defect was caused or worsened by improper use, insufficient maintenance, third-party changes or repairs, external causes or action contrary to instructions.
4. A warranty does not restrict the Client's statutory rights, but extends statutory complaint or limitation periods only if expressly stated.

Article 16 - Liability and mitigation

1. AZGS is liable only for direct loss that is the foreseeable and immediate result of an attributable breach or unlawful act by AZGS.
2. AZGS is not liable for indirect or consequential loss, including lost profit or revenue, loss of production, business interruption, missed savings, loss of data, financing costs, reputational damage or third-party contractual penalties.
3. AZGS's aggregate liability per event or series of related events is limited to the net invoice value of the part of the assignment to which the loss relates. For a continuing assignment, the limit is the net amount invoiced for that part during the preceding three months.
4. No limitation or exclusion in this Article or elsewhere in these terms constitutes a departure from Section 7:758(4) of the Dutch Civil Code. It does not apply insofar as, for contracting work on a structure, it would limit AZGS's liability to the Client's detriment for a defect not discovered at completion and attributable to AZGS. Only a legally valid departure expressly and project-specifically included in the Agreement itself may provide otherwise.
5. The limitations do not apply to intent or deliberate recklessness of AZGS's partners or management, death or personal injury where exclusion is prohibited, liability that mandatory law does not permit to be limited, or concealed defects known and withheld by AZGS.
6. The Client takes reasonable steps to prevent or mitigate loss and reports an incident without delay. Loss that could have been prevented by timely notice or a reasonable measure is not recoverable.
7. Advice, calculations or designs by third parties are outside AZGS's responsibility unless AZGS expressly accepted them as its own performance. This does not affect AZGS's statutory duty to warn or its liability for its own performance.

Article 17 - Indemnity against third-party claims

1. The Client indemnifies AZGS against third-party claims arising from designs, instructions, materials or data supplied by the Client, or from an unsafe location or activity for which the Client is responsible.
2. The indemnity does not apply insofar as the claim results from an attributable breach or unlawful act by AZGS.
3. A party confronted with a third-party claim promptly informs the other and gives it a reasonable opportunity to assist with defence and mitigation.

Article 18 - Materials, retention of title and risk

1. Movable items supplied by AZGS that have not yet been incorporated remain AZGS's property until all due amounts under the relevant Agreement have been paid, insofar as retention of title is legally possible.
2. The Client keeps these items identifiable and secure and may not pledge them or provide them as security. In the event of payment default, it gives AZGS access to recover them insofar as this can be done lawfully and without damaging the Work.
3. Retention of title ends for items that become part of real property by incorporation or accession. This does not affect AZGS's payment claim.
4. Client-supplied materials remain at the Client's risk as to suitability, dimensions and compatibility, except for loss demonstrably caused by AZGS's lack of due care and without prejudice to AZGS's statutory duty to warn.
5. Removed materials and waste become AZGS's property where removal is included in its scope, except items identified in Writing by the Client before commencement as items to be retained.

Article 19 - Intellectual property, confidentiality and personal data

1. Intellectual property rights in methods, estimates, designs, drawings, models and documents created by AZGS remain with AZGS or its licensor. After full payment, the Client receives a non-exclusive right to use them for the agreed project and purpose.
2. The Client may not reuse AZGS documents for another project, publish them or provide them to third parties without prior consent, except as necessary for management, maintenance, permits or performance of the relevant project.
3. The parties keep non-public commercial, pricing, technical and project information confidential and disclose it only to persons who need it for the Agreement or where disclosure is required by law.
4. Personal data are processed under applicable privacy law and the [privacy policy](#) published on the website. If the assignment requires a data processing agreement, the parties enter into one separately.
5. Project photographs or identifiable site information are used for publicity only with the Client's permission or where altered so that the Client and site cannot reasonably be identified.

Article 20 - Force majeure

1. Force majeure is a circumstance not attributable to a party that temporarily or permanently prevents performance, including government action, fire, flood, extreme weather, war, civil unrest, epidemics, general strikes, prolonged utility failures and unforeseen serious transport or supply disruption beyond the affected party's reasonable control.
2. The affected party reports the event and expected consequences as soon as reasonably possible. Its obligations are suspended for the duration and extent of the impediment without liability for damages.
3. The parties mitigate consequences and consider a reasonable adjustment of schedule, material or working method. Resulting variations are recorded in Writing.
4. If force majeure continues for more than sixty days or performance is clearly permanently impossible, either party may terminate the affected part in Writing. The Client pays for Work performed, materials supplied and reasonably incurred non-cancellable commitments.

Article 21 - Cancellation, rescission and termination

1. If the Client cancels all or part of a contract for work, it owes the agreed price less the savings resulting to AZGS from cancellation, in accordance with Section 7:764 of the Dutch Civil Code.
2. For other early termination by the Client, it pays for Work performed, materials supplied and ordered, commitments made, close-out and demobilisation costs, and loss reasonably suffered by AZGS, unless termination results from an attributable breach by AZGS.
3. A party may rescind all or part of the Agreement if the other party continues a material breach after Written notice of default and expiry of a reasonable cure period.
4. AZGS may terminate immediately or suspend performance upon the Client's bankruptcy, suspension of payments, cessation or dissolution, or where payment or safe performance can no longer reasonably be expected.
5. Termination does not affect accrued payment obligations, limitations of liability, confidentiality or provisions intended by their nature to survive.

Article 22 - Complaints and disputes

1. A complaint identifies at least the project, relevant performance, facts, relevant dates and requested solution. The parties first give each other a reasonable opportunity to resolve it practically and substantively.
2. A complaint does not suspend the Client's obligations except for a reasonably disputed portion under Article 12.
3. If consultation does not resolve the matter, the parties may jointly choose mediation or an independent expert. This is binding only if agreed in Writing.
4. Disputes are submitted to the Dutch court having jurisdiction under applicable law. To the extent a choice of forum is valid, the District Court of Midden-Nederland has jurisdiction, without prejudice to AZGS's right to bring proceedings before another court having jurisdiction by law.

Article 23 - Governing law, language and amendment

1. All legal relationships between AZGS and the Client are governed exclusively by Dutch law. The United Nations Convention on Contracts for the International Sale of Goods (CISG) is excluded insofar as it would otherwise apply.



2. The Dutch text is the authentic and legally binding version. This English translation is for information only; the Dutch text prevails if interpretation differs.
3. AZGS may amend these terms for future agreements. An existing Agreement remains governed by the version supplied before or upon its conclusion unless the parties agree otherwise in Writing.
4. Headings and the table of contents are for readability only and do not affect interpretation.

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